

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

JUSTICE MUHAMMAD HASHIM KHAN KAKAR
JUSTICE SALAHUDDIN PANHWAR
JUSTICE ISHTIAQ IBRAHIM

Criminal Appeals No.503 and 504 of 2022

(On appeal against the judgment dated 05.10.2016, passed by the Lahore High Court, Bahawalpur Bench, Bahawalpur, in Criminal Appeal No.410 of 2013/BWP and Murder Reference No.47 of 2013/BWP)

Shahzad Liaqat *(in Cr.Appeal No.503/2022)*
Abdul Hafeez *(in Cr.Appeal No.504/2022)*

...Appellant (s)

Versus

The State & another *(in both appeals)*

...Respondent(s)

For the Appellant (s):	Mr. Muhammad Akram Gondal, ASC and Syed Rifaqat Hussain Shah, AOR.
For the State:	Mirza Abid Majeed, DPG, Punjab
For the Complainant :	Mr. Zulfiqar Khalid Maluka, ASC
Date of hearing:	25.11.2025

JUDGMENT

ISHTIAQ IBRAHIM, J.- Shahzad Liaqat, the appellant, charged for committing murder of Muzamil Hafeez, the deceased, a young boy of 15/16 years vide case FIR No.170 dated 07.04.2012, registered under section 302 of the Pakistan Penal Code, 1860 ("**PPC**"), at Police Station Saddar Chistian, District Bahawalnagar, was tried by the Additional Sessions Judge, Bahawalnagar ("**Trial Court**"). Upon conclusion of trial, the Trial Court vide judgment dated 05.10.2013, convicted the appellant under section 302(b) PPC and sentenced him to death and to pay Rs.3,00,000/-, as compensation under Section 544-A of the Code of Criminal Procedure, 1898 ("**the Code**") to heirs of the deceased and in default thereof to further undergo simple imprisonment for six months.

2. The Lahore High Court, Bahawalpur Bench, Bahawalpur ("**the High Court**") while adjudicating upon the appeal filed by the appellant-

convict, maintained his conviction under section 302(b) PPC, however, commuted the death sentence to imprisonment for life and consequently answered the murder Reference No.47 of 2013, sent by the trial Court, in the negative vide judgment dated 05.10.2016 ("**impugned judgment**").

3. The appellant-convict filed Jail Petition No.656 of 2016 before this Court, seeking leave to appeal against the impugned judgment of the High Court. Similarly, the complainant Abdul Hafeez filed petition for enhancement of sentence of the respondent-convict. Vide order dated 04.10.2022 leave was granted by this Court to determine whether the appellant-convict has proved his defence plea and whether it is a case of section 302(b) or 302(c) PPC.

4. The prosecution's case, as set out in the First Information Report ("**FIR**") Exh. PA/1, registered on the basis of the written complaint Exh.PA of complainant Abdul Hafeez (PW-1), is that appellant Shahzad Liaqat had established a Homeo Store in village/Chak No. 9/G, where he was also running an easy-load business. It is alleged by the complainant that the appellant did not have a good reputation in the area and he used to harass his son Muzamil Hafeez (the deceased, a student of 9th class. The deceased when informed his father/complainant about the conduct of the appellant, the complainant admonished the appellant several times to mend his conduct.

5. On 07.04.2012 at 08.30 A.M. the deceased went to the Store of the appellant in order to get easy-load where the appellant started teasing him, as a result, a quarrel took place between them. The appellant gave slaps and fists blows to the deceased. On hearing commotion, the complainant (PW.1) along with Abdul Khaliq (PW.2), Muhammad Akram, and Basharat Ali, attracted to the spot and saw the appellant who after pulling out 30 bore pistol from his dub, fired at the deceased, with which the deceased got hit on his chest. The complainant and his above-named companions when tried to overpower the appellant, he threatened them of dire consequences. The appellant decamped from the spot on his motorcycle. The deceased then injured was shifted to hospital but he succumbed to injury.

6. On 18.04.2012, the appellant was arrested by Muzafar Hussain, SI (PW-11). Thereafter, on 27.04.2012, a 30-bore pistol (Exh.P-4) was recovered on his pointation through recovery memo Exh.PH. Upon completion of the investigation, a report under Section 173 of the Code was submitted against the appellant before the Trial Court. After conclusion of the trial, the learned Trial Court, vide judgment dated

05.10.2013, convicted and sentenced the appellant in the manner detailed in the opening part of the judgment. The learned High Court maintained the conviction of the appellant; however, through the impugned judgment, the sentence of death was altered to imprisonment for life.

7. We have heard the arguments of learned counsel for the parties as well as the Deputy Prosecutor General, Punjab appearing on behalf of the State and perused the record, evidence and the judgments of the courts below.

8. Complainant Abdul Hafeez (PW-1), father and Abdul Khaliq (PW-2), paternal uncle of the deceased, furnished the ocular account of the occurrence. Both are residents of Chak No. 9-G, where the incident took place. The testimony of the eyewitnesses is consistent on all material particulars of the incident, including the day, date, time and place of occurrence, as well as the mode and manner in which the appellant fired at the deceased with a 30-bore pistol. The eyewitnesses are further in agreement regarding the post-occurrence events, such as shifting the deceased from the place of occurrence to the hospital and the lodging of the report by the complainant. Both have singularly and directly implicated the appellant for murder of the deceased. The defence subjected both eyewitnesses to extensive cross-examination; however, nothing favourable to the defence or detrimental to the prosecution could be elicited from them. They have offered plausible and natural explanations for their presence at the crime spot at the time of occurrence. The occurrence took place in broad daylight, and the appellant being a co-villager was well known to the eyewitnesses, hence, the possibility of mistaken identity of the appellant stands completely excluded. No material has emerged from the cross-examination of the eyewitnesses to suggest the existence of any prior enmity, animosity, or motive with the appellant to suggest his false implication. Even otherwise, It is wholly unbelievable, and contrary to ordinary human conduct, that a real father and paternal uncle of the deceased would substitute the actual culprit of murder of their beloved with an innocent person. Although both eyewitnesses are closely related to the deceased, it is by now a well-settled principle of law that mere relationship does not, *per se*, render a witness unworthy of reliance. What is required is that the testimony of such a witness must be scrutinised with care; however, where their presence is natural, their statements stand firm on material particulars, inspire confidence, and find support from independent

circumstances, their evidence cannot be discarded merely on account of relationship. This Court has repeatedly held that substitution of the real offender with an innocent person, especially by closely related witnesses who have suffered the trauma of losing a near relative, is an extremely rare phenomenon and is not to be lightly presumed.

9. The medical evidence tendered by Dr. Zubair (PW-5), who conducted the postmortem examination on the dead body of the deceased, fully supports the ocular account. He observed a single firearm entry wound on the chest of the deceased with corresponding exit and opined that the said injury was sufficient to cause death in the ordinary course of nature. The medical evidence, therefore, lends material support to the prosecution case and reinforces the reliability of the eyewitnesses' account.

10. Upon re-appraisal of the entire prosecution evidence, we find ourselves in complete agreement with the concurrent findings recorded by the courts below. Both the Trial Court and the High Court have correctly appreciated the evidence in its true legal perspective and rightly concluded that the prosecution has successfully proved the charge against the appellant through trustworthy, coherent, and confidence-inspiring evidence. The learned High Court observed that the prosecution had failed to establish the motive and that the FSL report regarding the 30-bore pistol and crime empties could not be relied upon as the empties and weapon were transmitted together, which is an omission consistently held by this Court to render such forensic evidence inconsequential. The aforesaid findings of the High Court are well-anchored in the settled principles laid down by this Court in so many judgments. The High Court, treating the non-proof of motive and recovery inconsequential as mitigating circumstances, converted the sentence of death of the appellant into imprisonment for life.

10. Adverting to the plea raised by the appellant in his defence in his statement under section 342 of the Code, he asserted that on the fateful day his shop was closed; that certain individuals were cleaning a pistol in front of his shop when it accidentally discharged, hitting the deceased; and that he, along with other relatives, shifted the deceased in injured condition to the hospital on a motorcycle so as to save his life, but he was implicated falsely by the complainant in the case. In support of this plea, the appellant appeared as his own witness under section 340(2), Cr.P.C., and produced Muhammad Fayaz (DW-1), Zahoor Ahmad (DW-2) and Kashif Liaqat (DW-3). Although the defence witnesses

have attempted to corroborate the appellant's version, it is significant that none of them ever approached or appeared before the Investigating Officer during the investigation to advance or support the defence stance of the appellant. Likewise, neither the appellant nor any of the defence witnesses moved any application before the senior police authorities or any court of competent jurisdiction for the recording or preservation of their version during the pendency of the investigation. Their belated attempt to set up a defence story only at the trial stage, without any contemporaneous assertion backed by solid evidence would not be sufficient for discarding the trustworthy and confidence inspiring prosecution's evidence. Even otherwise, the defence plea has been contradicted by the site plan (Exh.PE). At point No.1 the deceased had received the injury and from the said point blood was recovered. Point No.1 as per site plan is located inside the shuttered portion of the appellant's shop. This clearly negates the appellant's claim that his shop was closed on the day of occurrence at the relevant time. The learned High Court, upon a thorough appraisal of the defence evidence, rightly discarded the appellant's plea as an afterthought and devoid of merit. We find no reason to take a view different from that arrived at by the High Court.

12. The contention advanced by learned counsel for the appellant-convict that, in view of the peculiar facts and circumstances and the evidence available on record coupled with all the attending circumstances of the case and the defence version of the appellant to some extent, the case falls within the ambit of section 302(c) PPC, deserves consideration. On our independent examination of the evidence, we note that there was no prior planning or intention on the part of the appellant to commit the murder of the deceased. The incident occurred when the deceased approached the shop of the appellant for an "easy-load," and an altercation ensued between them. In the heat of passion, the appellant fired a single shot, which resulted in the death of the deceased. In these circumstances, we are of the considered view that the ingredients of the offence under section 302(c) PPC, are attracted, rather than those under section 302(b) PPC. Section 302(c) PPC, was introduced through the *Qisas and Diyat Ordinance, 1990*. It is true that the legislature has not exhaustively defined the cases falling under clause (c) of section 302 PPC and the determination of such cases is left to judicial discretion, to be assessed on a case-to-case basis. This Court, in the case of *Ali Muhammad v. Ali Muhammad and another* (PLD 1996 Supreme

Supreme Court 274), has observed that there should be no doubt that the cases which were covered by the exceptions to the erstwhile section 300 PPC read with section 304 PPC, are the cases intended to be dealt with under the new clause (c) of section 302 PPC. The relevant portion of the judgment (ibid) is reproduced hereunder for ready reference:

..... there should be no doubt that the cases covered by the exceptions to the old section 300 PPC read with old section 304 PPC thereof, are cases which were intended to be dealt with under clause (c) of the new section 302 PPC.....”

Exceptions to the old section 300 PPC, read as under:-

When culpable homicide is not murder: Exception 1:

Culpable homicide is not murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation or causes the death of any other person by mistake or accident. The above exception is subject to the following provisos:-

Firstly: That the provocation is not sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person.

Secondly: That the provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant.

Thirdly: That the provocation is not given by anything done in the lawful exercise of the right of private defence.

Exception 2 :

Exception 3:

Exception 4: Culpable homicide is not murder if it is committed without premeditation in a sudden fight in the heat of passion upon a sudden quarrel and without the offender's having taken undue advantage or acted in a cruel or unusual manner.

Exception 5:

Old section 304 PPC, is also reproduce hereunder:-

304. Punishment for culpable homicide not amounting to murder: Whoever commits culpable homicide not amounting to murder, shall be punished with imprisonment for life or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, if the act by which the death is caused is done with the intention, of causing death, or of causing such bodily injury as is likely to cause death; or with imprisonment of either description for a term which may extend to ten years, or with fine, or with both, if the act is done with the knowledge that it is likely to cause death, but without any intention to cause death or to cause such bodily injury as is likely to cause death.

In view of the peculiar facts and circumstances of the instant case, as discussed above, and having regard to the above-referred provisions of law, the case of the appellant-convict squarely falls within the ambit of Exception 4 to the erstwhile section 300 PPC. In this context, reliance may also be placed on the judgments of this Court in *Azmat Ullah v. The State* (2014 SCMR 1178) and *Muhammad Abbas and another v. The State* (2023 SCMR 487). In *Muhammad Abbas case* (ibid), at page 492, this Court observed as follows:

However, so far as the quantum of punishment is concerned, we are of the view that the occurrence took place at the spur of the moment and there was no pre-meditation on the part of the petitioners. Admittedly, the occurrence took place in the house of the petitioners where the complainant party had brought a jirga for return of Mst. Shakeela, niece of the complainant, who was married with petitioner Muhammad Nawaz against the will of her parents. A bare perusal of the record reveals that something happened immediately before the occurrence, which provoked the petitioners and they caused churri blows on the person of the deceased. On our specific query, learned Law Officer and learned counsel for the complainant could not deny the fact that the occurrence took place at the spur of the moment. Admittedly, both the petitioners did not repeat their act. There was no deep-rooted enmity between the parties. In these circumstances, the learned High Court ought to have taken a lenient view. Consequently, we convict the petitioners under section 302(c), P.P.C. and sentence them to fourteen years RI each. The amount of fine and the sentence in default whereof shall remain intact.

13. For the reasons recorded above, Criminal Appeal No. 503 of 2022 is hereby partly allowed. The impugned judgment of the High Court is modified to the extent that the conviction of the appellant-convict under section 302(b) PPC, is converted into a conviction under section 302(c) PPC, and he is sentenced to undergo twenty years rigorous imprisonment. The compensation and the period of imprisonment in default thereof, as awarded by the learned High Court, shall remain intact. The appellant shall also be entitled to the benefit of section 382-B, Cr.P.C.

Criminal Appeal No. 504 of 2022

14. In view of the conversion of the conviction and sentence of the convict-respondent from section 302(b) PPC to section 302(c) PPC, the instant appeal seeking enhancement of sentence has become infructuous. The same is, therefore, dismissed.

Islamabad the
25th November, 2025
Approved for reporting.
M.Siraj Afridi PS